

House File 639

S-3153

1 Amend House File 639, as amended, passed, and reprinted by
2 the House, as follows:

3 1. By striking everything after the enacting clause and
4 inserting:

5 <Section 1. Section 6A.21, subsection 2, Code 2025, is
6 amended to read as follows:

7 2. The limitation on the definition of public use,
8 public purpose, or public improvement does not apply to the
9 establishment, relocation, or improvement of a road pursuant
10 to [chapter 306](#), or to the establishment of a railway under the
11 supervision of the department of transportation as provided in
12 section 327C.2, or to an airport as defined in [section 328.1](#),
13 or to land acquired in order to replace or mitigate land used
14 in a road project when federal law requires replacement or
15 mitigation. This limitation also does not apply to utilities,
16 persons, companies, or corporations under the jurisdiction
17 of the Iowa utilities commission or to any other utility
18 conferred the right by statute to condemn private property or
19 to otherwise exercise the power of eminent domain, except to
20 the extent such purpose includes construction of hazardous
21 liquid pipelines for the transportation or transmission of
22 liquefied carbon dioxide or aboveground merchant lines. For
23 purposes of this subsection, "utility" means a public utility as
24 defined in section 306.46, subsection 2.

25 Sec. 2. EFFECTIVE DATE. This Act, being deemed of immediate
26 importance, takes effect upon enactment.

27 Sec. 3. APPLICABILITY. This Act applies to condemnation
28 proceedings for which the application filed under section 6B.3
29 is filed on or after the effective date of this Act.>

30 2. Title page, by striking lines 1 through 8 and inserting
31 <An Act relating to the exercise of eminent domain for the
32 construction of hazardous liquid pipelines and including
33 effective date and applicability provisions.>

KEVIN ALONS